

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
RUBEN ROSA and MEYLI ALVAREZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, JUSTIN MARZAN,
ROBERT KING, and MERCEDES CONEJO,

Defendants.
----- X

Plaintiffs designate
Bronx County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

302602/12

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 11, 2012

SIVIN & MILLER, LLP

By

Edward Sivin
Attorneys for Plaintiff
170 Broadway, Suite 600
New York, NY 10038
(212) 349-0300

COUNTY CLERK
BRONX COUNTY

2012 MAR 19 PM 2:31

RECEIVED

To:

City of New York
c/o Corporation Counsel
100 Church Street, New York, NY 10007

Justin Marzan, Robert King and Mercedes Conejo
c/o NYPD Patrol Borough Bronx Pct.
450 Cross Bronx Expressway, Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
RUBEN ROSA and MEYLI ALVAREZ,

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, JUSTIN MARZAN,
ROBERT KING and MERCEDES CONEJO,

Defendants.

----- X

Plaintiff, by their attorneys SIVIN & MILLER, LLP, as and for their complaint herein, allege as follows, upon information and belief:

THE PARTIES

K 1. That at all times herein mentioned, plaintiffs were and are residents of the County of Bronx, City and State of New York.

X 7 2. That at all times herein mentioned, defendant The City of New York (hereinafter "the City") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3 3. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, notices of claim and intention to sue were duly served upon and filed with the City on behalf of plaintiffs; that this action was not commenced until the expiration of thirty (30) days after such notices of claim and intentions to sue were presented and the City has neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

7 4. That at all times herein mentioned, the City owned, operated, controlled, managed and maintained the New York Police Department (hereinafter the "NYPD").

7 (5) 5. That at all times herein mentioned, defendant Justin Marzan (hereinafter

"Marzan") was and is an officer employed by the NYPD.

7 (6) That at all times herein mentioned, Marzan was acting within the course and scope of his employment with the NYPD.

7 (7) That at all times herein mentioned, Marzan was acting under color of state law.

7 (8) That at all times herein mentioned, defendant Robert King (hereinafter "King") was and is an officer employed by the NYPD.

7 (9) That at all times herein mentioned, King was acting within the course and scope of his employment with the NYPD.

7 (10) That at all times herein mentioned, King was acting under color of state law.

7 (11) That at all times herein mentioned, defendant Mercedes Conejo (hereinafter "Conejo") was and is an officer employed by the NYPD.

7 (12) That at all times herein mentioned, Conejo was acting within the course and scope of her employment with the NYPD.

7 (13) That at all times herein mentioned, Conejo was acting under color of state law.

THE FACTS

8 14. Plaintiffs repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

K 15. That on April 15, 2011, plaintiff Ruben Rosa (hereinafter "Rosa") was operating his motor vehicle in the County of Bronx, City and State of New York.

K 16. That on April 15, 2011, plaintiff Meyli Alvarez (hereinafter "Alvarez") was a passenger in the aforementioned motor vehicle.

D 17. That on April 15, 2011, defendants forcibly stopped and seized the aforesaid motor vehicle and seized the plaintiffs herein.

D 18. That the aforesaid stop and seizure was undertaken without probable cause or

reasonable suspicion that plaintiffs had committed or were about to commit any crime or criminal offense.

D 19. That thereafter, defendants searched plaintiffs and searched the aforesaid vehicle without consent and without probable cause or reasonable suspicion that plaintiffs had committed or were about to commit any crime or criminal offense.

D 20. That defendants thereafter forcibly handcuffed, arrested and imprisoned plaintiffs and took plaintiffs into custody, without a warrant and without plaintiffs' consent and without probable cause or reasonable suspicion that plaintiffs had committed or were about to commit any crime or criminal offense.

D 21. That on or about April 16, 2011, while plaintiffs were in custody, defendants also commenced and/or caused to be commenced against plaintiffs a criminal prosecution, in which plaintiffs were falsely accused of various crimes of which they were innocent and of which defendants knew plaintiffs to be innocent.

D 22. That in support of the aforesaid criminal prosecution, defendant made statements and accusations about plaintiffs that they knew to be false.

D 23. That the aforesaid actions by defendants were malicious in nature.

D 24. That the criminal prosecution of plaintiffs continued for a period of over two months, during which time plaintiffs were required to retain counsel, appear in court, and defend against the various false accusations.

K 25. That on or about June 22, 2011, all criminal charges against plaintiffs were dismissed on the merits, and the criminal prosecution resulted in a termination favorable to plaintiffs.

D 26. That as a result of the foregoing, plaintiffs suffered and continue to suffer

physical, emotional, and psychological injuries, loss of liberty, embarrassment, humiliation, and damage to their name and reputation, and economic loss.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest and Imprisonment)

8 27. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

D 28. That the aforementioned actions of defendants constitute a false arrest and false imprisonment of plaintiffs.

SECOND CAUSE OF ACTION AGAINST DEFENDANTS MARZAN, KING and CONEJO
(42 USC § 1983 Claim Arising From False Arrest and Imprisonment)

8 29. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

D 30. That the aforementioned false arrest and false imprisonment of plaintiffs constitute an illegal seizure and deprivation of liberty of plaintiffs in violation of rights guaranteed to plaintiffs under the Fourth Amendment to the US Constitution, and entitle plaintiffs to recover damages pursuant to 42 USC § 1983.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution)

8 31. Plaintiffs repeats and reallege each and every allegation set forth above as though fully set forth at length herein.

D 32. That the aforementioned actions of defendants constitute a malicious prosecution of plaintiffs.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS MARZAN, KING and CONEJO
(42 USC § 1983 Claim Arising From Malicious Prosecution)

8 33. Plaintiffs repeats and reallege each and every allegation set forth above as though fully set forth at length herein.

D 34. That the aforementioned malicious prosecution constitutes an illegal seizure and deprivation of liberty of plaintiffs in violation of rights guaranteed to plaintiffs under the Fourth Amendment to the US Constitution, and entitle plaintiffs to recover damages pursuant to 42 USC § 1983.

FIFTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training and Retention)

8 35. Plaintiffs repeats and reallege each and every allegation set forth above as though fully set forth at length herein.

D 36. That the aforesaid incidents and resulting damage to plaintiffs was due to the negligence of the City, its agents, servants and/or employees, in the hiring, training and retention of Marzan, King and Conejo.

SIXTH CAUSE OF ACTION AGAINST THE CITY
("Monell" Claim)

8 37. Plaintiffs repeats and reallege each and every allegation set forth above as though fully set forth at length herein.

D 38. That the aforesaid actions by Marzan, King and Conejo were consistent with and in compliance with an authorized pattern and practice of the NYPD whereby persons of color would be stopped, questioned, frisked, and detained by NYPD officers without probable cause, without reasonable suspicion, and without justification.

D 39. That the aforesaid actions by Marzan, King and Conejo resulted from a

deliberate indifference by the City to a pattern of unconstitutional conduct by those officers.

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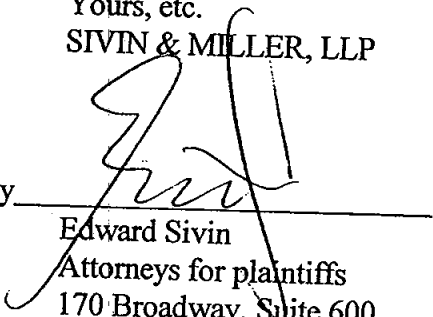
40. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiffs demand judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Marzan, King and Conejo, and attorney's fees against all defendants pursuant to 42 USC § 1988, and plaintiffs also demand the costs and disbursements of this action.

Dated: New York, New York
March 11, 2012

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for plaintiffs
170 Broadway, Suite 600
New York, NY 10038
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

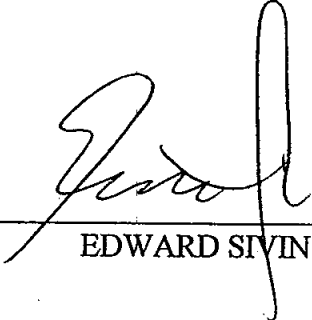
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
March 11, 2012



EDWARD SIVIN